

Essay 2 Outline

Introduction:

Hook: Compare the promise of the 15th Amendment with the realities of those who experienced its use.

Topic: Linking the Reconstruction/Jim Crow laws (1865-1960s) to modern voting access in the 21st century.

Thesis: While methods of withholding human rights have shifted from “Black Codes” to complex hurdles, the underlying intent to limit political power to minority groups remains a constant threat in American History.

Summary: Examine the 19th century with the Jim Crow Laws and Black Codes and compare them to the modern-day ID requirements and ballot drop-off restrictions.

The Era of Jim Crow and Black Codes

Intent: Discuss the goal of “white supremacy” in the electoral process following the Civil War

Evidence: (Category A): Black Codes Handout → “No negro shall be allowed to pass within the limits of said parish (town) without a special permit...”

1890 Mississippi State Convention that implemented literacy tests and poll taxes to “legislate against the racial peculiarities of the Negro”

Lost Cause Narrative: Category A → Explain how this was used to justify these laws by rewriting history and reframing the Reconstruction era as a period of patriotism.

Current Challenges to Voting Access

Intent: Discuss the modern laws that are framed as “election integrity” and examine how they affect different populations disproportionately.

Evidence: (Category C) → Quote from Brennan Center: “Twenty-five states bar community members from voting, simply based on convictions in their past.”

Quote from League of Women Voters → “Nearly 29 million voting-age US citizens did not have a valid driver’s license.”

Specific Example: Removal of “Souls to the Polls” Sunday voting

Restrictions on third-party ballot drop-offs that affect Black Communities

Comparison and Analysis

Change over time: Violent intimidation and “race-based laws, such as literacy tests, have been replaced by “neutral” administrative laws (Strict ID, closing polling place).

How it stayed the same: The outcome stayed the same → reduction of voting for minority groups, students, and low-income people.

Context: Post-Civil War anxiety and a desire in the South to revert to the social hierarchy.

Modern: Deep political polarization, tech-driven debates over voter fraud, with a lack of evidence

Casualty: Both periods show legislative action, such as the 1890 Mississippi Convention as a solution to the 15th Amendment, and modern restrictions are used to stop high-turnout elections.

Conclusion:

Summary of Connection: "Patchwork of state laws"(Brenna Center) is used as a modern loophole similar to Black Codes and Jim Crow Laws in the 1800s

Personal Reflection: Despite the Voting Rights Act of 1965, the Shelby County v. Holder decision reopened the door.

Final Thought: Understanding history is necessary to recognizing "neutral" laws and finding the biased impacts proactively.

Essay 2

The Persistence of the Lost Cause in American Voting Access

The American democracy has always been a tug-of-war. On one side is the idea of democracy; on the other is a long history of trying to keep minority groups from voting. After the Civil War, the 15th Amendment was supposed to guarantee equal voting rights for everyone, regardless of race. However, Southerners were quick to find loopholes to get around this seemingly straightforward law. They created the “Black Codes” and “Jim Crow” laws to keep power in the hands of white supremacy. While the Civil Rights Movement of the 1960s stopped the simple versions of this, we are seeing a revival of the voting rights inequality—we use ID cards and must complete paperwork instead of the past literacy tests. The goal has not changed: to make it harder for specific groups of people to have the right to vote or have a voice in society.

The History: Black Codes and the “Lost Cause”

Immediately after the end of the Civil War, Southern states were desperate to regain control over the formerly enslaved. They wrote laws called the “Black Codes.” These laws weren’t just social rules, but were about control. For example, one handout from class showed a law from a Louisiana town that said: “No negro shall be allowed to pass within the limits of said parish (town) without a special permit in writing from his employer.”¹ This meant that if you were Black, you couldn’t even walk into a town without a note from your white boss. This was a legal way to keep control over the formerly enslaved and practically contain Black people within their formal rights.

¹ Jared Lomeli, “Primary Sources | Black Codes vs Jim Crow Laws”, class notes, Hist 15

As time went on, a new idea was created, known as the “Lost Cause.” This was the South trying to rewrite history and make the Confederacy look like the heroes in the Civil War, and to justify the new laws. Mitch Landrieu argues that the Lost Cause worked “to hide the truth, which is that the Confederacy was on the wrong side of humanity.”² Since the Constitution said that you couldn’t simply ban voters for being Black, many states got creative with their “loopholes”. Literacy tests and poll taxes were placed to force uneducated and poor families to be denied voting rights. This was an attempt to restore white supremacy. They also used the “Grandfather Clause”, which stated that if your grandfather could vote before 1867, you didn’t have to take a test.³ Since enslaved people couldn’t vote back then, this was a protected law to keep Blacks from reaching the voting polls.

Modern Times: New Rules, Same Problems

Today, we don’t have “literacy tests,” but we still have many laws labeled for “election integrity.” Many states have passed laws with this label and even stated that they are in place to stop voter fraud. One example of this is the strict Voter ID laws. It may sound simple to show an ID, but millions of people do not own one. According to the League of Women Voters, “Nearly 29 million voting-age US citizens did not have a valid driver’s license.”⁴ If the state decides that a student ID does not count, but a fishing license does, the government is choosing who gets to vote and who doesn’t—sound familiar? They also note that these laws create a “patchwork of state

² Mitch Landrieu, "Address on the Removal of Confederate Monuments," New Orleans, May 19, 2017, Learning for Justice, <https://archive.learningforjustice.org/classroom-resources/texts/new-orleans-mayor-mitch-landrieus-address-on-the-removal-of-four>.

³ Jared Lomeli, “Primary Sources | Black Codes vs Jim Crow Laws”, class notes, Hist 15

⁴ "Voter ID," League of Women Voters, accessed March 22, 2024, <https://www.lwv.org/voting-rights/voter-id>.

laws,”⁵ which makes the laws confusing for lower-educated groups to participate. This mostly affects young people, people of color, and people who are considered lower-class.

Another major issue is felony disenfranchisement. In other words, if an individual has a criminal record, they may lose their right to vote forever. The Brennan Center for Justice reports that “Twenty-five states bar community members from voting, simply on the basis of convictions in their past.”⁶ In some states, you get your rights back after some time, and in others, you never do. The system is very similar to the Black Codes of 1800, used to arrest Black men and take away their voting rights. The Story of Reconstruction notes that the progress of the 19th century was “transformed into an era of segregation and Jim Crow Laws”⁷ on purpose. The same video then explains that the right to vote was taken away from many groups through “a series of technical tools of registration,”⁸ something we still see today in our political administration.

Comparison and Analysis

When looking at the two eras over time, we see a clear pattern. In the 1800s, the barriers were more obvious and often involved violence and more physical tactics of restricting marginalized groups. In the present day, the barriers are hidden behind paperwork and ID rules. However, in both cases, the majority goal is keeping control over which groups have a voice. The context from both eras shows that laws appear when the group in power feels threatened by the changing or growing population of the “lesser” groups. Examples of this include the “Lost

⁵ “Voter ID,” League of Women Voters.

⁶ “Disenfranchisement Laws,” Brennan Center for Justice, accessed March 22, 2024, <https://www.brennancenter.org/issues/ensure-every-american-can-vote/voting-rights-restoration/disenfranchisement-laws>.

⁷ “The Story of Reconstruction,” CBS News, January 13, 2019, YouTube video, 6:42, <https://www.youtube.com/watch?v=NGPAnLDzQYY>.

⁸ “The Story of Reconstruction,” CBS News.

Cause” in the past or the idea of “voter fraud” today. These ideas allow the government or white supremacy to contain power over the population while abiding by the rules of the Constitution through the use of loopholes in its writing. The bottom line is that all new rules in this category of politics are used to make it harder for specific communities to vote.

Conclusion

The most interesting thing I learned from this essay and class discussions is that these tricks are still used today in hidden forms. I find it surprising that the Grandfather Clause from the 1800s and the ID laws of today go hand in hand, as they are put in place to serve the same purpose. They both create a hurdle that looks “fair” to everyone, but it is actually impossible for many dismissed groups. The fight for voting rights did not stop after the Civil Rights Movement, but rather became a bigger discussion as we push for truly equal rights every day. The ongoing struggle against an expired idea of white supremacy should not still be in place in a nation that preaches equal voices for all in a democracy.